Province of Alberta

SAFETY CODES ACT

EXEMPTION REGULATION

Alberta Regulation 351/2003

With amendments up to and including Alberta Regulation 209/2024

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Office Consolidation

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(Consolidated up to 209/2024)

ALBERTA REGULATION 351/2003

Safety Codes Act

EXEMPTION REGULATION

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Definition

1 In this Regulation, "Alberta Fire Code" means the code declared in force in respect of fire protection by section 1 of the *Fire Code Regulation* (AR 32/2015).

AR 351/2003 s1;209/2024

Exempt elevating devices

2 The following elevating devices are exempt from the Act:

(a) automatic transfer devices within the meaning of the ASME A17.1/CSA B44 Safety Code for Elevators and Escalators as in force and as varied under the *Elevating Devices Codes Regulation* (AR 192/2015);

(b) elevating devices in mines regulated under the *Occupational Health and Safety Act*;

(c) elevating devices serving privately owned single-family dwellings;

(d) hand-powered dumbwaiters within the meaning of the ASME A17.1/CSA B44 Safety Code for Elevators and Escalators as in force and as varied under the *Elevating Devices Codes Regulation* (AR 192/2015);

(e) hand-powered manlifts within the meaning of the CSA B311 Safety Code for Manlifts as in force and as varied under the *Elevating Devices Codes Regulation* (AR 192/2015);

(f) marine elevators within the meaning of the ASME A17.1/CSA B44 Safety Code for Elevators and Escalators as in force and as varied under the *Elevating Devices Codes Regulation* (AR 192/2015);

(g) wind turbine tower elevators within the meaning of the ASME A17.1/CSA B44 Safety Code for Elevators and Escalators as in force and as varied under the *Elevating Devices Codes Regulation* (AR 192/2015).

AR 351/2003 s2;241/2021

Exempt electrical systems

3 Electrical systems used in mines regulated by the *Mines and Minerals Act* or any regulation made under the *Mines and Minerals Act* are exempt from the Act.

AR 351/2003 s3;296/2020

Exempt gas distribution systems

4 Gas distribution systems regulated by the *Gas Distribution Act* are exempt from the Act.

AR 351/2003 s4;159/2013

Firecrackers

5 A person who is the organizer of a community event is exempt from the provisions of Sentence 2.1.2.1(1) of Part 2 Division C of the Alberta Fire Code under the condition that

(a) the organizer receives special permission, in writing, from the Administrator in the fire discipline specifying

(i) the community event and the date, time and location where the firecrackers are to be discharged, and

(ii) any other terms and conditions the Administrator in the fire discipline considers necessary to ensure the safe use of the firecrackers,

(b) the firecrackers are authorized for use pursuant to the *Explosives Regulations* (Canada),

(c) the firecrackers are set off only by or under the supervision of a fireworks supervisor, and

(d) a high hazard fireworks permit is obtained, in accordance with the Alberta Fire Code, from a safety codes officer, if the permit is required by the municipality where the community event is to take place.

AR 351/2003 s5;1/2008;156/2015;29/2019;209/2024

Residence of person with developmental disability

5.1(1) In this section,

(a) "Building Code" means the code declared in force with respect to buildings by section 1 of the *Building Code Regulation* (AR 5/2024);

(b) "developmental disability" means a developmental disability within the meaning of the *Persons with Developmental Disabilities Services Act* and the descriptions in the regulations under that Act;

(c) repealed AR 209/2024 s4;

(d) "residence of adults with a developmental disability" means a building or unit in a building that is occupied or intended to be occupied by at least one adult with a developmental disability, but does not include

(i) a supportive living accommodation as defined in the *Continuing Care Act*, or

(ii) a building that is designated for use for care or treatment, where the use is regulated by an enactment other than the Act and regulations under the Act.

(2) For greater certainty, a residence of adults with a developmental disability is exempt from the definitions, requirements, references and prohibitions both in the Building Code and in the Alberta Fire Code in respect of

(a) care,

(b) care occupancy,

(c) treatment, and

(d) treatment occupancy.

AR 217/2016 s2;29/2019;22/2024;67/2024;209/2024

Building Code 1978 exemptions

6(1) The basement window and the dining room window in the wall located on or near the property line of a house municipally described as 1472 Berkeley Drive Northwest in the City of Calgary on Lot 5, Block 33, Plan 7910490, are exempt from the prohibition in Article 9.10.15.8. of the *Alberta Building Code 1978* on window openings.

(2) The west and southwest exposed building faces of a building municipally described as 801 7th Avenue Southwest, located in the City of Calgary on Lot F, Block 46, Plan 8050EJ and Lots 21 to 26 inclusive, Block 34, Plan A.1, are exempt from the restrictions in Subsection 3.2.3. of the *Alberta Building Code 1978* on the area of unprotected openings.

(3) The plastic piping, located within the basement storage garage, forming part of the drainage system of a building municipally described as 10450 to 10460 Mayfield Road, located in the City of Edmonton on Lot 22B, Block 2, Plan 782-2486 Subdivision Youngstown, is exempt from the restriction in Sentence 3.1.7.7.(2) of the *Alberta Building Code 1978* on the use of combustible drain, waste and vent piping.

(4) The headroom in the stairway located between a swimming pool and a passageway leading to the dwelling portion of a dwelling unit, in the City of Edmonton on Lot 36, Block 5, Plan 5508-MC, Subdivision Petrolia, is exempt from the requirement of Article 9.8.3.7. of the *Alberta Building Code 1978*.

Building Code 1981 exemptions

7(1) In this section, the definitions in the *Alberta Building Code 1981* apply.

(2) A wall assembly, constructed when the *Alberta Building Code 1981* was in force, that is of solid wood not less than 89 millimetres thick is exempt from the requirements of Article 9.26.2.4 of the *Alberta Building Code 1981* for inclusion of thermal insulation in that wall if

(a) the wall is an exterior wall of

(i) a building of residential occupancy that contains not more than one dwelling unit, or

(ii) a garage serving that building;

(b) the initial purchaser of the building is the owner and is the initial occupier of it;

(c) the purchaser filed a statement with the Director and with the authority having jurisdiction containing

(i) the name and address of the purchaser,

(ii) the name and address of the manufacturer of the wall assembly,

(iii) the legal description of the land on which the building will be located, and

(iv) the thermal resistance of the opaque portion of the wall assembly.

(3) The Blueberry Community Core School presently constructed in Parkland County on Lot 15 M.R., Block 1, Subdivision Plan 822-2413 is exempt from the requirements of Sentence 3.2.5.3(1) of the *Alberta Building Code 1981*.

(4) Compressed air systems and vacuum systems are exempt from the requirements of Subsection 3.6.5 of the *Alberta Building Code 1981* if the system

(a) is used in a dental facility constructed when that Code was in force,

(b) is directly connected to and designed to serve only dental equipment or dental chairs,

(c) is not used for respiration, and

(d) is not connected to a central piping system that serves other uses.

(5) The Graminia Core School presently constructed on the S.W. quarter of Section 12, Township 51, Range 27, West of the 4th Meridian is exempt from the requirements of Sentence 3.2.5.3(1) of the *Alberta Building Code 1981*.

Building Code 1985 exemption

8 If establishments that are licensed to serve alcoholic beverages were constructed when the *Alberta Building Regulation, 1985* (AR 186/85) was in force and have washroom facilities that comply with Sentence 7.2.2.2.(1) in the *Alberta Building Regulation, 1985* (AR 186/85), they are exempt from the requirements of Sentence 7.2.2.3.(7) in that Regulation.

Building Code 1990 exemption

9 The south exposed building face of the "Alberta Sustainable House" located at 9211 Scurfield Drive N.W., Calgary, Alberta and legally described as Lot 55, Block 5, Plan 92Y3056 is exempt from Article 9.10.14.1 of the *Alberta Building Code 1990*.

Building Code 1997 exemption

10(1) In this section, "lands" means those lands legally described as follows:

> West Meridian 4, Range 17, Township 9, Section 28, Quarter South East, that lies southeast of Road Plan 7941JK containing 58.57 hectares (144.67 acres) more or less;
> Excepting thereout:
> Road Plan 7410388 containing 0.405 hectares (1.00 acres) more or less; Road Plan 8710118 containing 0.403 hectares (0.996 acres) more or less; Subdivision Plan 9911871 containing 27.4 hectares (67.7 acres) more or less;
> Excepting thereout all mines and minerals.

(2) The 148 foot by 240 foot potato storage facility located on the southeast corner of the lands is exempt from the *Alberta Building Code 1997*.

Building Code 2006 exemption

10.1(1) In this section,

(a) "Building Code" means the code declared in force with respect to buildings by section 1 of the *Building Code Regulation* (AR 5/2024);

(b) "exposing building face", "registered architectural professional", "registered engineering professional" and "residential occupancy" have the meanings given to them in the Building Code;

(c) "historic resource" means a historic resource designated under the *Historical Resources Act* as a Provincial Historic Resource or a Municipal Historic Resource.

(2) Notwithstanding section 1 of the *Building Code Regulation* (AR 5/2024), a grain elevator that is part of a historic resource listed in the Schedule is exempt from the Building Code if

(a) it is being operated, or being renovated for operation, solely as a museum or an information centre,

(b) no building of residential occupancy is located within 30 m of any exposing building face of the grain elevator,

(c) all exposing building faces of the grain elevator that are not adjacent to a railway right of way are surrounded by a fire break at least 6 m wide and composed of gravel or an equivalent noncombustible material,

(d) a registered engineering professional has prepared a report respecting the structural condition of the grain elevator and any remediation recommended in the report as being necessary to ensure the structural stability of the grain elevator has been completed in consultation with a registered architectural professional,

(e) portable fire extinguishers are

(i) sized and located in the grain elevator in conformance with the Extra Hazard Occupancy portion of Table 6.2.1.1 of NFPA 10 "Portable Fire Extinguishers", published by the National Fire Protection Association, and

(ii) installed in the grain elevator in accordance with the *Fire Code Regulation* (AR 32/2015),

(f) the occupant load of the grain elevator is 20 persons and a permanent sign indicating that occupant load is posted in a conspicuous location,

(g) no hand-powered counterbalanced manlifts, as defined in CAN/CSA B311 "Safety Code for Manlifts", published by the Canadian Standards Association, within the grain elevator are capable of being operated,

(h) smoke alarms conforming to CAN/ULC S531 "Smoke Alarms", published by the Underwriters' Laboratories of Canada,

(i) are located throughout all publicly accessible areas of the grain elevator,

(ii) are located not more than 5 m from any wall and spaced not more than 10 m apart, and

(iii) are wired so that the actuation of one smoke alarm will cause all smoke alarms within the grain elevator to sound,

(i) all combustible dust is removed before the grain elevator is opened to the public,

(j) in the case of a grain elevator in which a mechanical grain handling system that produces any combustible dust is operated, procedures are in place for weekly removal of the combustible dust,

(k) the aggregate weight of any oilseeds, legumes or other seeds or grain in the grain elevator does not exceed 2000 kg,

(l) any seeds or grain referred to in clause (k) are used only for the purposes of display and demonstration,

(m) no hazardous projections are present on any interior walls of the grain elevator at a height of 2.1 m or less above the finished floor level, and

(n) no food or beverage preparation or service is carried on in the grain elevator.

(3) The following requirements of Division B of the Building Code apply to every grain elevator referred to in subsection (2):

(a) emergency lighting requirements under Subsection 3.2.7.;

(b) exit sign requirements under Subsection 3.4.5.

(4) Notwithstanding this section and section 6(1) of the *Permit Regulation* (AR 204/2007), a permit in the building discipline is required

(a) for any renovation of or addition to, or

(b) for a change in occupancy of

a grain elevator referred to in subsection (2).

AR 22/2012 s2;156/2015;29/2019;296/2020;67/2024

Repeal

11 The *Exemption Regulation* (AR 199/96) is repealed.

12 Repealed AR 296/2020 s6.

Schedule

1 Alberta Wheat Pool Grain Elevator Site Complex
Location: Andrew, Alberta

2 Alberta Pacific Grain Elevator
Location: Castor, Alberta

3 Alberta Wheat Pool Grain Elevator Site Complex
Location: Leduc, Alberta

4 Alberta Wheat Pool Grain Elevator
Location: Mayerthorpe, Alberta

5 Alberta Pacific Grain Elevator Site Complex
Location: Meeting Creek, Alberta

6 Alberta Wheat Pool Grain Elevator
Location: Paradise Valley, Alberta

7 Krause Milling Company Grain Elevator and
Flour Mill Site Complex
Location: Radway, Alberta

8 Rowley Grain Elevator Row
Location: Rowley, Alberta

9 Alberta Wheat Pool Grain Elevator and Bow Slope Stockyard
Location: Scandia, Alberta

10 Alberta Grain Company Grain Elevator
Location: St. Albert, Alberta

11 Alberta Wheat Pool Grain Elevator
Location: St. Albert, Alberta

AR 22/2012 s3





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